

NAVIGATORS INSURANCE COMPANY

Administrative Offices

One Penn Plaza
50th Floor
New York, NY 10119

Statutory Home Office

One Penn Plaza
50th Floor
New York, NY 10119

THIS IS A CLAIMS MADE INSURANCE POLICY.

THIS POLICY APPLIES TO THOSE CLAIMS THAT ARE FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD.

COVERAGE UNDER THE POLICY CEASES UPON TERMINATION OF THE POLICY, EXCEPT FOR AUTOMATIC EXTENDED REPORTING PERIOD COVERAGE, UNLESS THE INSURED PURCHASES OPTIONAL EXTENDED REPORTING COVERAGE.

THE POLICY PROVIDES NO COVERAGE FOR CLAIMS ARISING OUT OF ACTS OR OMISSIONS IN THE PERFORMANCE OF PROFESSIONAL SERVICES WHICH TOOK PLACE PRIOR TO THE RETROACTIVE DATE.

THE POLICY PROVIDES FOR AUTOMATIC EXTENDED REPORTING PERIOD COVERAGE OF 60 DAYS AND OPTIONAL EXTENDED REPORTING PERIOD COVERAGE OF UP TO 7 YEARS. COVERAGE GAPS MAY ARISE AT THE EXPIRATION OF THE POLICY, AUTOMATIC EXTENDED REPORTING PERIOD OR OPTIONAL EXTENDED REPORTING PERIOD. DURING THE FIRST SEVERAL YEARS OF THE CLAIMS MADE RELATIONSHIP, CLAIMS-MADE RATES ARE COMPARATIVELY LOWER THAN OCCURRENCE RATES, AND THE INSURED CAN EXPECT SUBSTANTIAL ANNUAL PREMIUM INCREASES, INDEPENDENT OF THE OVERALL RATE LEVEL INCREASES, UNTIL THE CLAIMS-MADE RELATIONSHIP REACHES MATURITY.

PLEASE READ THIS POLICY CAREFULLY.

ACCOUNTANTS PROFESSIONAL LIABILITY POLICY DECLARATIONS

COMPANY: NAVIGATORS INSURANCE COMPANY

POLICY NUMBER: CE24APLZ0EWLSIV

RENEWAL OF: CE23APLZ0EWLSIV

PRODUCER NAME & ADDRESS:

CRC INSURANCE SERVICES LLC
1 N FRANKLIN STREET STE 3500
CHICAGO, IL 60606

Class 2-14002
Risk

NOTICE: THESE POLICY FORMS AND THE APPLICABLE RATES ARE EXEMPT FROM THE FILING REQUIREMENTS OF THE NEW YORK INSURANCE LAW AND REGULATIONS. HOWEVER, THE FORMS AND RATES MUST MEET THE MINIMUM STANDARDS OF THE NEW YORK INSURANCE LAW AND REGULATIONS.

1. NAMED INSURED:

Longmeadow Associates LLC

2. ADDRESS:

656 Taxter Road Suite 105
Elmsford, NY 10523

3. POLICY PERIOD: FROM: 8/1/2024 TO: 8/1/2025

12:01 A.M. Standard Time at the address of the **Named Insured** as stated in Number 2. above.

4. LIMITS OF LIABILITY (Inclusive of claim expenses):

A. \$3,000,000 Limit of Liability – Each **Claim**

B. \$3,000,000 Limit of Liability – Policy Aggregate

5. DEDUCTIBLE (Inclusive of claim expenses): \$25,000 Each Claim

6. ANNUAL PREMIUM: \$28,008

7. EXTENDED REPORTING PERIOD PREMIUM:

A. One (1) year **extended reporting period** – 75% of the annual premium

B. Three (3) year **extended reporting period** – 150% of the annual premium

C. Five (5) year **extended reporting period** – 175% of the annual premium

D. Seven (7) year **extended reporting period** – 200% of the annual premium

8. NOTICES TO BE SENT TO:

Report a claim:

Navigators Pro – Claims Department
One Hartford Plaza,
Hartford, CT 06155
212-555-0891 - Fax
[Email: newloss@thehartford.com](mailto:newloss@thehartford.com)

All Other Notices:

Navigators Insurance Company
One Penn Plaza, 50th Floor
New York, NY 10119
212-555-0892 - Telephone
212-555-0891 - Fax

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9. RETROACTIVE DATE (if applicable):

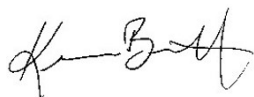
8/1/2023

10. FORMS AND ENDORSEMENTS ATTACHED AT POLICY EFFECTIVE DATE:

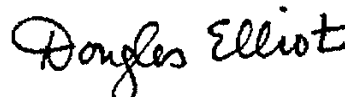
NAV APL NIC PF NY (12/11)	Accountants Professional Liability Policy
NAV-ML-002 (11/12)	OFAC Endorsement
NAV-APL-059 (10/23)	Retirement, Death or Permanent Disability Extended Reporting Period Option Amended for Sole Proprietors
HG 00 H156 02 (06/23)	Territory Exclusion Endorsement
NAV APL 001 NY (12/11)	Additional Insured Endorsement
NAV APL 004 NY (12/11)	Aggregate Deductible Endorsement
NAV APL 009 NY (12/11)	Claim Expense Outside the Limit of Liability Endorsement
NAV APL 002 NY (12/11)	Additional Named Insured Endorsement
NAV APL 046 NY (08/16)	Network Security and Privacy Exclusion Endorsement
NAV APL 033 NY (12/11)	Specific Entity Exclusion Endorsement

By Acceptance of this policy the Insured agrees that the statements in the Declarations and the Application and any attachments hereto are the Insured's agreements and representations and that this policy embodies all agreements existing between the Insured and the Company, or any of its representatives, relating to this insurance.

IN WITNESS WHEREOF, we have caused this policy to be signed by our President and Secretary.



[Kevin Barnett]
Secretary



[Douglas Elliot]
President

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Navigators Insurance Company

A "Stock" Company

Home Office: One Penn Plaza, 50th Floor, New York, NY 10119

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THIS POLICY APPLIES TO THOSE CLAIMS THAT ARE FIRST MADE AGAINST THE INSURED DURING THE POLICY PERIOD, OR ANY EXTENDED REPORTING PERIOD. CLAIM EXPENSES, INCLUDING LEGAL DEFENSE, ARE WITHIN AND REDUCE THE LIMIT OF LIABILITY. THE LIMIT OF LIABILITY AVAILABLE TO PAY DAMAGES MAY BE REDUCED BY UP TO 50% BY CLAIM EXPENSES. FURTHER NOTE THAT CLAIM EXPENSES SHALL BE APPLIED AGAINST THE DEDUCTIBLE BY UP TO 50% OF THE DEDUCTIBLE AMOUNT. PLEASE READ THE ENTIRE POLICY CAREFULLY.

ACCOUNTANTS PROFESSIONAL LIABILITY POLICY

Words and phrases that appear in **bold** print have special meanings that are defined in Section III. **DEFINITIONS**.

I. INSURING AGREEMENTS

A. Coverage

The **Company** will pay on behalf of the **Insured** all sums in excess of the deductible that the **Insured** shall become legally obligated to pay as **damages** and **claim expenses** as a result of a **claim** first made against the **Insured** during the **policy period** or the **extended reporting period**, by reason of an act or omission, including **personal injury**, in the performance of **professional services** by the **Insured** or by any person for whom the **Insured** is legally liable, provided that:

1. Prior to:

- a. The inception date of the first policy issued and continuously renewed by the **Company**, or;
- b. The date the **Insured** first became a member or employee of the **Named Insured** or **predecessor firm**, whichever is later,

No **Insured** had a basis to believe that any such act or omission, or **related act or omission**, might reasonably be expected to be the basis of a **claim**; and

2. Neither the act or omission nor any **related act or omission** occurred prior to the **retroactive date**, if applicable.

B. Defense

The **Company** shall have the right and duty to defend, in the **Insured's** name and on the **Insured's** behalf, a **claim** covered by this policy even if any of the allegations of the **claim** are groundless, false or fraudulent. The **Company** shall have the right to appoint counsel and to make such investigation and defense of a

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claim as is deemed necessary by the **Company**. If a **claim** shall be subject to arbitration or mediation, the **Company** shall be entitled to exercise all of the **Insured's** rights in the choice of arbitrators or mediators and in the conduct of an arbitration or mediation proceeding.

C. Settlement

The **Company** will have the right to make, with the consent of the **Named Insured**, any settlement of a **claim** under this policy. If the **Named Insured** refuses to consent to a settlement within the policy's applicable limit of liability that is recommended by the **Company** and acceptable to the claimant, then the **Company's** limit of liability under this policy will be reduced to the sum of the amount of **damages** for which the **claim** could have been settled, plus all **claim expenses** incurred up to the time the **Company** made its recommendation (the "Reduced Limit of Liability"). In addition, if the Reduced Limit of Liability is exhausted, the **Company** will pay fifty percent (50%) of all **claim expenses** and **damages** incurred thereafter, subject at all times to the applicable limit of liability as specified in Section II., paragraph A. Limit of Liability – Each Claim and Sub-limit and Section II., paragraph B. Limit of Liability – Policy Aggregate and Aggregate Sub-Limit.

D. Exhaustion of Limits

The **Company** is not obligated to pay any **damages** or **claim expenses** or to defend or continue to defend any **claim** after the applicable limit of liability has been exhausted by the payment of **damages** or **claim expenses** as provided herein; or after the **Company** has deposited the applicable limit of liability into a court of competent jurisdiction or tendered the applicable limit of liability to the **Named Insured** or, if applicable, to the excess insurer(s) of the **Named Insured**. In such case, the **Company** shall have the right to withdraw from the further investigation, defense or settlement of such **claim** by tendering control of said investigation, defense and settlement of the **claim** to the **Insured**. The **Company** will cooperate in the transfer to the **Named Insured** of control of the defense of any **claims** which were reported to the **Company** prior to the exhaustion of such limit. The **Named Insured** must reimburse the **Company** for expenses it incurs in taking those steps the **Company** deems appropriate to avoid a default in such **claims** until such transfer has been completed.

II. LIMITS OF LIABILITY AND DEDUCTIBLE

A. Limit of Liability - Each Claim

Subject to Section II.B. below, the **Company's** limit of liability for **damages** and **claim expenses** for each **claim** first made against the **Insured** during the **policy period** shall not exceed the amount shown in item 4.A. in the Declarations for "Each **Claim**." The **Company's** limit of liability for each **claim** may be reduced by up to fifty (50) percent by the payment of **claim expenses** if the limit of liability shown in item 4.A. in the Declarations for "Each **Claim**" is at least \$500,000. If the **Company's** limit of liability for each **claim** is reduced by fifty (50) percent by the payment of **claim expenses**, any additional **claim expenses** paid by the **Company** shall not further reduce the limit of liability for each **claim**.

B. Limit of Liability - Policy Aggregate

The **Company's** limit of liability for **damages** and **claim expenses** for all **claims** first made against the **Insured** during the **policy period** shall not exceed the aggregate amount shown in item 4.B. in the Declarations as the "Policy Aggregate." The **Company's** limit of liability for all **claims** may be reduced by up to fifty (50) percent by the payment of **claim expenses** if the limit of liability shown in item 4.A. in the

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Declarations for "Each **Claim**" is at least \$500,000. If the **Company's** limit of liability for all **claims** is reduced by fifty (50) percent by the payment of **claim expenses**, any additional **claim expenses** paid by the **Company** shall not further reduce the limit of liability for all claims.

C. Deductible

The deductible amount stated in item 5. of the Declarations for "each **claim**" applies to each and every **claim** first made against the **Insured** and reported in writing to the **Company** during the **policy period** or any applicable **extended reporting period**. Such deductible amount shall apply to the payment of **damages** and **claim expenses**, and shall be paid by the **Named Insured**.

Claim expenses charged against the deductible amount stated in item 5. of the Declarations for "each **claim**" may equal up to fifty (50) percent of the deductible amount if the limit of liability shown in item 4.A. in the Declarations for "Each **Claim**" is at least \$500,000.

D. Deductible Reduction Incentive

If the **Company** and the **Named Insured** agree to resolve a **claim** through arbitration or non-binding mediation and the **claim** is resolved, the **Insured's** deductible obligation for such **claim** will be reduced by 50%, subject to a maximum reduction of \$25,000.

E. Multiple Insureds, Claims and Claimants

The limits of liability shown in item 4. in the Declarations is the maximum amount the **Company** will pay under this policy for **damages** and **claim expenses** regardless of the number of **Insureds**, **claims** made or claimants. All **related claims** made against any **Insured** shall be considered a single **claim**, first made when the earliest of the **related claims** was first made and first reported to the **Company** when the earliest of the **related claims** was reported to the **Company**; provided, however, that nothing in this Section II.F. shall alter the **Insured's** obligation to give written notice of any **claim** made against the **Insured** as soon as reasonable.

F. Supplementary Payments

Supplementary payments are not subject to the deductible and are in addition to the limits of liability.

1. Defense of Disciplinary Actions

The **Company** will provide for the defense of any **disciplinary action** brought against the **Insured** and reported to the **Company** during the **policy period**. The **Company's** maximum liability in this regard for all legal defense fees and expenses incurred by the **Insured** in the defense of any **disciplinary action** shall be \$10,000 per **disciplinary action** and \$20,000 per **policy period**, regardless of the number of **Insureds** or number of **disciplinary actions**.

2. Reimbursement for Security Incident

The **Company** will reimburse the **Named Insured** for any **security incident** response expenses up to a maximum of \$10,000 per **security incident** and \$20,000 per **policy period**. **Security incident** response expenses are any expenses incurred by the **Insured** to: 1) hire cyber forensic analysts to determine the extent of an actual security breach that has occurred; or 2) comply with state or local

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privacy laws requiring that notification and credit monitoring services are to be provided to individuals when the security, confidentiality, or integrity of their personal information has been compromised.

3. Other Payments

The **Company** will reimburse the **Insured** for actual loss of earnings and reasonable expenses incurred at the **Company's** request for attendance at trial or a court-ordered hearing, arbitration or mediation in connection with a **claim** reported under this policy. The **Company's** obligation to reimburse the **Insured** under this provision shall be subject to a maximum amount of \$500 per day, \$7,500 per **claim** and \$25,000 per **policy period** regardless of the number of trials, hearings, mediations or arbitration proceedings or the number of **Insureds**.

4. Subpoena Expenses

Subject to an aggregate \$25,000 limit of liability per **policy period**, the **Company** will pay for all legal defense fees and expenses incurred in responding to a subpoena for documents or testimony first received by an **Insured** during the **policy period** or an **extended reporting period** (if applicable) by reason of an act or omission in the performance of **professional services** by the **Insured** or by any person for whom the **Insured** is legally liable, The **Company** will at the **Insured's** request, and upon receipt of a copy of the subpoena, retain an attorney to provide advice regarding the production of documents, to prepare the **Insured** for sworn testimony and represent an **Insured** at their deposition, provided that:

- a. The subpoena arises out of a lawsuit to which the **Insured** is not a party; and
- b. The **Insured** has not been engaged to provide advice or testimony in connection with the lawsuit, nor has the **Insured** provided such advice or testimony in the past.

Any notice given to the **Company** of such subpoena shall be deemed notification under Section V A.2 of this policy.

5. Non-Profit Directors and Officers Coverage

The **Company** will reimburse the **Insured** up to a maximum of \$10,000 per **policy period** for **damages** and **claim expenses** arising out of any **Insured's** activities, while acting as a Director or Officer of a non-profit organization, as defined by the Internal Revenue Service, provided that such activities have been disclosed to the **Company** in the application or other written notification which has been accepted by the **Company**.

III. DEFINITIONS

- A. **Bodily injury** means physical injury, sickness or disease sustained by any person including death resulting from any of these at any time; or mental illness, mental anguish or emotional distress, pain and suffering, or shock sustained by that person whether or not resulting from injury to the body, sickness, disease or death of any person.
- B. **Claim** means a demand for money or services, including a service of suit or the institution of an arbitration proceeding against the **Insured**, naming the **Insured**, arising out of an act or omission in the performance of **professional services**.

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C. Claim expenses means:

1. Fees charged by attorneys designated by the **Company** or designated by the **Insured** with the **Company's** prior written consent;
2. All other reasonable and necessary fees, costs and expenses resulting from the investigation, adjustment, negotiation, arbitration, mediation, defense or appeal of a **claim** if incurred by the **Company** or by the **Insured** with the **Company's** prior written consent; and
3. Premiums on appeal bonds, attachment bonds or similar bonds; provided, however, that the **Company** is not obligated to apply for or furnish any such bond.

Claim expenses do not include fees, costs or expenses of employees or officers of the **Company**, or salaries, loss of earnings or other remuneration by or to any **Insured**.

D. Company means the insurance company named in the Declarations.

E. Damages means any compensatory sum and includes a judgment, award or settlement, provided any settlement is negotiated with the **Company's** written consent.

Damages do not include:

1. Fines, penalties, forfeitures or sanctions;
2. Injunctive or declaratory relief;
3. The multiplied portion of any multiplied awards;
4. Reimbursement of any **Insured's** fees for **professional services**;
5. Punitive or exemplary amounts.

F. Disciplinary action means an action brought against the **Insured** by the American Institute of Certified Public Accountants, any state boards of accounting, public oversight board or governmental agency with the authority to regulate the **Insured's professional services** alleging professional misconduct or violation of the Code of Professional Responsibility; provided that such proceeding arises from an act or omission described in Section I.A. herein.

G. Extended reporting period means the period of time after the end of the **policy period** for reporting **claims** to the **Company** that are first made against the **Insured** during the applicable **extended reporting period** by reason of an act or omission, which was committed prior to the end of the **policy period** and on or subsequent to the **retroactive date**, and is otherwise covered by this policy.

H. Insured means:

1. The **Named Insured**;
2. Any **predecessor firm**;

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3. Any past, present or future partner, incorporated partner, officer, director, stockholder, member, manager, associate, independent contractor, professional corporation or employee of the **Named Insured**, but only with respect to **professional services** performed on behalf of the **Named Insured** or any **predecessor firm**, provided further that if such person has ceased to be employed or affiliated with the **Named Insured** or any predecessor firm, such person shall continue to be an **Insured** hereunder with respect to **professional services** performed on behalf of the **Named Insured** during such employment or affiliation;
 4. Any **Insured's** spouse, but only with respect to any **claim** resulting from **professional services** performed on behalf of the **Named Insured** or any **predecessor firm**;
 5. The estate, heirs, spouse, executors, administrators and legal representatives of any **Insured** in the event of the **Insured's** death, incapacity or bankruptcy, but only with respect to **professional services** performed on behalf of the **Named Insured** prior to such **Insured's** death, incapacity or bankruptcy;
 6. Any **Insured's** present or former temporary or leased personnel engaged by the **Insured**, but only while acting on the **Insured's** behalf in the performance of **professional services**.
- I. **Investment Adviser** means any **Insured** who provides financial, economic or investment advice, including personal financial planning and investment management services, provided that **Investment Adviser** does not include any **Insured** while involved in the bartering, purchase or sale of securities, insurance products or other investment products.
- J. **Named Insured** means the person or entity specified in item 1. in the Declarations.
- K. **Personal Fiduciary** is an executor, administrator or representative of an estate or a trustee of a **personal trust** of which any **Insured** or his or her spouse are not beneficiaries or distributees of said **personal trust**.
- L. **Personal trust** means an individual or family trust established for the sole benefit of the individual or family or a charitable remainder trust as defined under Internal Revenue Code Section 664.
- M. **Personal injury** means:
1. False arrest, detention or imprisonment;
 2. Malicious prosecution;
 3. The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies by or on behalf of its owner, landlord or lessor;
 4.
 - a. Oral or written publication, in any manner, including electronic form, of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services; or
 - b. Oral or written publication, in any manner, including electronic form, of material that violates a person's right of privacy;

Except, in either case, oral or written publication in any manner which arises out of advertising, broadcasting or telecasting activities conducted by or on behalf of any **Insured**.

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- N. Policy period** means the period of time from the effective date shown in item 3. in the Declarations to the earliest of the date of termination, expiration or cancellation of this policy.
- O. Pollutants** means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.
- P. Property damage** means:
1. Physical Injury to tangible property, including all resulting loss of use of that property; or
 2. Loss of use of tangible property that is not physically injured.
- Q. Predecessor firm** means any partnership, professional association, limited liability partnership, limited liability corporation or corporation, which has undergone dissolution, and:
1. The **Named Insured** is the majority successor in interest to the financial assets and liabilities; and
 2. At least 51% of the owners, partners, officers, directors or stockholder-employee in such firm became an owner, partner, officer, director, stockholder-employee, or other-employee of the **Named Insured**.
- R. Professional services** means services in the practice of accounting in any of the following capacities:
1. Accountant or accounting consultant;
 2. **Investment Adviser**;
 3. Bookkeeper, enrolled agent or tax preparer;
 4. **Personal Fiduciary**;
 5. Notary public, provided that the **Insured** witnessed and attested to the authenticity of the signature notarized;
 6. Member of a formal accreditation, standards review or similar professional board or committee related only to the accounting profession;
 7. Arbitrator or mediator;
- Pro bono **professional services** are included under this definition provided that such pro-bono services are performed with the knowledge and consent of the **Named Insured**.
- S. Related acts or omissions** means all acts or omissions in the rendering of **professional services** that are temporally, logically or causally connected by any common fact, circumstance, situation, transaction, event, advice or decision.
- T. Related claims** means all **claims** arising out of a single act or omission or arising out of **related acts or omissions**.

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U. **Retroactive date** means the date shown in item 9. in the Declarations.

V. **Security incident** means the unauthorized access to, or use of, data containing private or confidential information in connection with the performance of **professional services** which results in the violation of any Privacy Regulation.

IV. EXCLUSIONS

The **Company** will not defend or pay any **claim**:

- A. Based on or arising out of any dishonest, intentionally wrongful, fraudulent, criminal or malicious act or omission by the **Insured**. The **Company** will provide the **Insured** with a defense of such **claim** unless and until such dishonest, intentionally wrongful, fraudulent, criminal or malicious act or omission has been determined by any final adjudication, finding of fact or admission by the **Insured**. Such defense will not waive any of the **Company's** rights under this policy. Upon establishment that the dishonest, intentionally wrongful, fraudulent, criminal or malicious act or omission by the **Insured** was committed, the **Company** will have the right to seek recovery of the **claim expenses** incurred from the **Insured** found to have committed such acts or omissions;
- B. Based on or arising out of **bodily injury** or **property damage**, except that the exclusion does not apply to mental illness, mental anguish, or emotional distress caused by **personal injury**;
- C. Based on or arising out of discrimination, humiliation, harassment, or misconduct including, but not limited to, **claims** based on allegations relating to an individual's race, creed, color, age, gender, national origin, religion, disability, marital status or sexual preference;
- D. Based on or arising out of the **Insured's** capacity as an officer, director, partner, manager, trustee or employee of any company, corporation, operation, organization or association other than the **Named Insured** or any **predecessor firm**; provided, however, that this exclusion does not apply to an accountant when acting as a trustee for a **personal trust** or while acting as a Director or Officer as defined in Section II., G.5 of this policy;
- E. Based on or arising out of **professional services** performed for or by any business enterprise not named in item 1. in the Declarations, including an entity held in a **personal trust**, if on or after the date or time of the act or omission giving rise to such **claim**:
 - 1. Any **Insured** controlled, owned, operated or managed or intended to control, own, operate or manage such entity; or
 - 2. Any **Insured** was, or intended to become, an owner, partner, member, director, officer or employee of such entity.

Control of or ownership in a business enterprise is established if the **Insured**, or the **Insured's** spouse, own or hold, individually or collectively, directly or indirectly, 10% or more of the equity and/or debt instruments of such enterprise;

- F. By or on behalf of the **Insured** against any other **Insured** unless such **claim** arises out of **professional services** performed by such other **Insured** in an accountant/client relationship with the **Insured** making the **claim**;

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- G. Based on or arising out of the **Insured's** activities as a fiduciary or plan administrator under the Employee Retirement Income Security Act of 1974 (ERISA), the Pension Benefits Act or the Consolidated Omnibus Budget Reconciliation Act of 1986 (COBRA) including any amendments to each, or under any similar governmental statute or regulation; provided, however that this exclusion shall not apply if an **Insured** is deemed to be a fiduciary solely by virtue of **professional services** rendered as an accountant to the plan, including accounting, audit, attest, consulting, tax, investment advisory services or administrative services to an employee benefit plan as an independent third party consultant;
- H. Based on or arising out of any allegation that the **Insured** is liable for the cost of:
1. The actual, alleged or threatened emission, discharge, dispersal, seepage, release or escape of **pollutants**; or
 2. Any injury, damage, payments, costs or expense incurred as a result of any testing for, monitoring, removal, containment, treatment, detoxification, neutralization or cleanup of **pollutants**;
- I. Based on or arising out of liability assumed by any **Insured** under any contract or agreement, unless such liability would have attached to the **Insured** even in the absence of such contract or agreement;
- J. Based on or arising out of the loss or destruction of or diminution in the value of any tangible property in the **Insured's** care, custody or control; however this exclusion will not apply to client's records which are in the **Insured's** care, custody or control;
- K. Based on or arising out of the **Insured** gaining, in fact, any personal profit or advantage to which the **Insured** is not legally entitled;
- L. Based on or arising out of your capacity as a broker or dealer in securities, as those terms are defined in Sections 3(a)(4) and 3(a)(5), respectively, of the Securities Exchange Act of 1934, or any amendment thereto.

V. CONDITIONS

A. Reporting of Claims and Potential Claims:

1. The **Insured**, as a condition precedent to the obligations of the **Company** under this policy, will give written notice of any **claim** made against the **Insured** as soon as reasonable after a **claim** is made, but in no event after the end of the **policy period** or the end of any **extended reporting period**.

Failure to give any notice required by this policy within the time prescribed shall not invalidate any **claim** made by the **Insureds** or by any claimant if it shall be shown that it was not reasonably possible to give such notice within the time prescribed and that notice was given as soon as was reasonably possible.

Failure to give any notice required to be given within the time prescribed shall not invalidate any **claim** made by the **Insureds** or any other claimant, unless the failure to provide timely notice has prejudiced the Insurer, provided that the notice shall have been made during the **policy period** or any applicable **extended reporting period**.

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2. If during the **policy period**, any **Insured** becomes aware of any act or omission which may reasonably be expected to be the basis of a **claim** against any **Insured**, including but not limited to any notice, advice or threat, whether written or verbal, that any person or entity intends to hold the **Insured** responsible for any alleged act or omission and gives written notice to the **Company** with all full particulars, including:
 - a. The specific act or omission;
 - b. The dates and persons involved;
 - c. The identity of anticipated or possible claimants;
 - d. The circumstances by which the **Insured** first became aware of the potential **claim**; and
 - e. Potential damages or injury;

Then any **claim** that is subsequently made against the **Insured** arising out of such act or omission will be deemed to have been made on the date such written notice was received by the **Company**.

The **Insured** shall give all written notices to the **Company** under this Condition V.A.1. and V.A.2. as specified in item 8. of the Declarations. Written notice to any licensed agent of the **Company** in this state under Conditions V.A.1. and V.A.2 above shall be deemed notice to the **Company**.

B. Assistance and Cooperation

1. The **Insured** will cooperate with the **Company** in the defense, investigation and settlement of any **claim**. Upon the **Company's** request, the **Insured** will attend hearings, depositions and trials and assist in effecting settlements, securing and giving evidence, obtaining the attendance of witnesses and in the conduct of suits and proceedings in connection with a **claim**.
2. The **Insured** will assist in the enforcement of any right of contribution or indemnity against any person or organization who or which may be liable to any **Insured** in connection with a **claim**.
3. The **Insured** will not, except at the **Insured's** own cost, voluntarily make any payment, assume or admit any liability or incur any expense without the prior written consent of the **Company**. The **Company** shall have no obligation to pay or reimburse any person or entity for sums expended to defend any **claim** otherwise covered under this policy prior to written notice of such **claim** being received by the **Company**.

C. Action against the Company

1. No action may be brought against the **Company** unless, as a condition precedent thereto:
 - a. The **Insured** has fully complied with all the terms of this policy; and
 - b. Until the amount of the **Insured's** obligation to pay has been determined either by judgment against the **Insured** or by written agreement of the **Insured**, the claimant and the **Company**.
2. Nothing contained in this policy will give any person or organization the right to join the **Company** as a defendant or co-defendant or other party in any action against the **Insured** to determine the **Insured's** liability.

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3. With respect to **claims**, if the **Company** denies coverage or does not admit liability because an **Insured** or the injured person, or someone acting for the injured person or other claimant fails to give the **Company** written notice as soon as practicable, then the injured person, someone acting for the injured person or other claimant may bring an action against the **Company**, provided the sole question is whether the denial of coverage or non-admission of liability is based on the failure to provide timely notice.

However, the injured person, someone acting for the injured person or other claimant may not bring an action if within sixty (60) days after the **Company** denies coverage or does not admit liability, the **Company** or an **Insured**:

- a. Brings an action to declare the rights of the parties under the policy; and
- b. Names the injured person, someone acting for the injured person or other claimant as a party to the action.

D. Bankruptcy

Bankruptcy or insolvency of the **Insured** or of the **Insured's** estate will not relieve the **Company** of any of its obligations hereunder.

E. Other Insurance

The insurance provided for in this policy, including any supplementary payments shall be excess over all other valid and collectible insurance, whether such insurance is stated to be primary, contributory, excess, umbrella, contingent or otherwise. This does not apply to insurance that is purchased by the **Named Insured** specifically to apply in excess of this insurance.

F. Subrogation

In the event of any payment under this policy, the **Company** shall be subrogated to all the **Insured's** rights of recovery thereof against any person or organization, including any rights such **Insured** may have against any other **Insured** who personally participated or personally acquiesced in or remained passive after having knowledge of any dishonest, intentionally wrongful, fraudulent, criminal or malicious act or omission. The **Insured** shall execute and deliver instruments and papers and do whatever else is necessary to secure and collect upon such rights. The **Insured** shall do nothing to prejudice such rights.

G. Changes

Notice to any agent of the **Company** or knowledge possessed by any such agent or by any other person will not affect a waiver or a change in any part of this policy, and will not prevent or preclude the **Company** from asserting or invoking any right or provision of this policy. None of the provisions of this policy will be waived, changed or modified except by a written endorsement issued by the **Company** to form a part of this policy.

H. Mergers, Acquisitions, Spin-offs and Dissolution

The **Named Insured** must report to the **Company** any changes during the **policy period** which affect fifty percent (50%) or more of the accountants insured at the inception of this policy. This notice must be

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provided in writing within sixty (60) days of such change. The **Named Insured** does not have to report such changes to the **Company** if less than six (6) accountants were insured at the inception of this policy. In the event of a merger, dissolution or acquisition, the **Named Insured** must use its best efforts to notify the **Company** at least thirty (30) days prior to the projected date of such change. In each case the **Company** will have the right to accept, alter or decline coverage and to charge an additional premium.

I. Cancellation/Nonrenewal

1. This policy may be cancelled by the **Named Insured** by returning it to the **Company**. The **Named Insured** may also cancel this policy by giving written notice to the **Company** stating at what future date cancellation is to be effective.
2. During the first 60 days this policy is in effect, the **Company** may cancel this policy by sending written notice to the **Named Insured** at the address shown in item 2. in the Declarations and to the **Named Insured's** authorized agent or broker. The **Company** will provide such written notice at least twenty (20) days before such cancellation is to be effective if the cancellation is for any reason included in paragraph 3 below or thirty (30) days before such cancellation is to be effective if such cancellation is for any reason not included in paragraph 3 below.
3. After this policy has been in effect for 60 days, the **Company** may cancel this policy by mailing to the **Named Insured** at the address shown in item 2. in the Declarations and to the **Named Insured's** authorized agent or broker written notice stating when, not less than thirty (30) days thereafter, such cancellation will be effective. Cancellation by the **Company** shall be limited to the following reasons:
 - a. Non-payment of premium provided, however, that a notice of cancellation on this ground shall inform the **Named Insured** of the amount due; or,
 - b. Failure of the **Named Insured** to comply with the terms or conditions of this policy in a manner that substantially increases the hazard insured against; or
 - c. Revocation or suspension of the **Named Insured's** license to offer the **professional services**; or
 - d. Discovery of fraud or material misrepresentation in the obtaining of this policy or in the presentation of a claim.
4. If the **Company** elects not to renew this policy, the **Company** shall send notice as provided in paragraph 6 below.
5. If the **Company** conditions the renewal of this policy upon:
 - a. Change in limits;
 - b. Change in type of coverage;
 - c. Reduction of coverage;
 - d. Increased deductible or self-insured retention;
 - e. Addition of exclusion;

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- f. Increased premiums in excess of ten percent (10%), exclusive of any premium increase due to and commensurate with added or increased exposure; or as a result of experience rating, loss rating, retrospective rating, or audit.

The **Company** shall send notice as provided in paragraph 6 below.

- 6. If the **Company** decides not to renew this policy or conditionally renew this policy as provided in paragraphs 4 or 5, the **Company** shall mail or deliver written notice to the **Named Insured** at least sixty (60) days, but not more than one hundred twenty (120) days before:

- a. The expiration date of the policy; or
- b. The anniversary date if this is a continuous policy.

Notice will be mailed or delivered to the **Named Insured** and its authorized agent or broker. If notice is mailed, proof of mailing will be sufficient proof of notice.

Notice will include the specific reason or reasons for nonrenewal or conditional renewal, the specific proposed premium increase, if any, and any proposed changes described in paragraph 5, if any.

The **Company** will not send the **Named Insured** notice of non-renewal or conditional renewal if the **Named Insured** or its authorized agent or broker or another insurer of the **Named Insured** mails or delivers notice that this policy is replaced or no longer desired.

- 7. If the **Company** violates any of the provisions of paragraphs 4, 5, or 6 by sending the **Named Insured** an incomplete or late notice of nonrenewal or conditional renewal:
 - a. If such notice is sent prior to the expiration date of this policy, coverage will remain in effect at the same terms and conditions of this policy at the lower of the current rates or the prior period's rates until sixty (60) days after such notice is mailed or delivered, unless the **Named Insured**, during this sixty (60) day period, has replaced the coverage or elects to cancel.
 - b. If such notice is sent on or after the expiration date of this policy, coverage will remain in effect at the same terms and conditions of this policy for another policy period, at the lower of the current rates or the prior period's rates, unless the **Named Insured**, during the additional policy period, has replaced the coverage or elects to cancel.

The limit of liability of this policy shown in the Declarations will be increased in proportion to any policy extension provided by this paragraph 7.

- 8. If the **Company** or **Named Insured** cancels this policy, the earned premium will be computed on a pro rata basis. Premium adjustment may be made either at the time cancellation is effected or as soon as practicable after cancellation becomes effective, but payment or tender of unearned premium is not a condition of cancellation.
- 9. The offering of terms and conditions different from the expiring terms and conditions, including limits of liability, deductible or premium, shall not constitute a refusal to renew.

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J. Territory

This policy applies to an act or omission taking place anywhere in the world provided that any suit is brought against the **Insured** within the United States of America, its territories or possessions, Puerto Rico or Canada.

K. Named Insured Sole Agent

The **Named Insured** will be the sole agent and will act on behalf of all **Insureds** for the purpose of giving or receiving any notices, any amendments to or cancellation of this policy, for the completing of any applications and the making of any statements, representations and warranties, for the payment of any premium and the receipt of any return premium that may become due under this policy and the exercising or declining to exercise any right under this policy including the purchase of an **extended reporting period** under Section VI.B. of this policy.

L. Entire Contract

By acceptance of this policy the **Insured** attests that:

1. All of the information and statements provided to the **Company** by the **Insured**, including but not limited to, the application and any supplemental information, are true, accurate and complete and will be deemed to constitute material representations made by the **Insured**;
2. This policy is issued in reliance upon the **Insured's** representations;
3. This policy, endorsements thereto, together with the completed and signed application and any and all supplementary information and statements provided by the **Insured** to the **Company**, embody all of the agreements existing between the **Insured** and the **Company** and shall constitute the entire contract between the **Insured** and the **Company**; and
4. Any material misrepresentation or concealment by the **Insured**, or the **Insured's** agent, will render the policy null and void and relieve the **Company** from all liability herein.

M. Notices

Other than reporting a **claim**, all other notices required to be given by the **Insured** will be submitted in writing to the **Company** or its authorized representative at the address specified in item 8. in the Declarations. If mailed, the date of mailing of such notice will be deemed to be the date such notice was given and proof of mailing will be sufficient proof of notice.

N. Assignment

No assignment of interest of the **Insured** under this policy is valid, unless the **Company's** written consent is endorsed hereon.

O. Innocent Insured

Whenever coverage under this policy would be excluded because of Exclusion A., the **Company** agrees that such insurance as would otherwise be afforded under this policy will be applicable with respect to those **Insureds** who did not personally participate or personally acquiesce in or remain passive after having

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knowledge of such conduct. Each **Insured** must promptly comply with all provisions of this policy upon learning of any concealment.

P. Liberalization

If the **Company** obtains approval for any amended state filing that would broaden coverage under this policy form NAV APL NIC PF NY (12 11) without additional premium at any time during the current **policy period**, the broadened coverage will immediately apply to this policy, except that it will not apply to **claims** that were first made against the **Insured** prior to the effective date of such revision.

Q. Reimbursement

While the **Company** has no duty to do so, if the **Company** pays **damages** and **claim expenses**:

1. Within the amount of the applicable deductible, or
2. In excess of the applicable Limit of Liability, or
3. Under a reservation of rights to seek reimbursement, and it is determined that the **Company** is entitled to reimbursement.

All **Insureds** shall be jointly and severally liable to the **Company** for such amounts. Upon written demand, the **Insured** shall repay such amounts to the **Company** within 30 days. Failure to pay any amount indicated may lead to policy termination.

VI. EXTENDED REPORTING PERIODS

A. Automatic Extended Reporting Period

If this policy is cancelled or non-renewed by either the **Company** or by the **Named Insured** or if the **Company** offers or if the **Named Insured** requests any change in coverage less favorable to the **Named Insured**, including but not limited to decrease in limits, reduction of coverage, increase in deductible or self-insured retention or new exclusion, the **Company** will provide to the **Insured** an automatic, non-cancelable **extended reporting period** starting at the end of the **policy period**. This automatic **extended reporting period** will terminate after sixty (60) days. The automatic **extended reporting period** provided hereunder shall not increase the limit of liability, or create a separate or additional limit of liability, and the limit of liability with respect to **claims** made during the automatic **extended reporting period** shall be part of, and not in addition to, the limit of liability as set forth in item 4. of the Declarations.

B. Optional Extended Reporting Period

If this policy is cancelled or non-renewed by either the **Company** or by the **Named Insured** or if the **Company** offers, or if the **Named Insured** requests any change in coverage less favorable to the **Named Insured**, including but not limited to decrease in limits, reduction of coverage, increase in deductible or self-insured retention or new exclusion, the **Named Insured** will have the right to purchase an optional **extended reporting period** that would extend the period of time during which **claims** may be reported. Within thirty (30) days after termination of coverage, the **Company** will advise the **Named Insured** in writing of the automatic **extended reporting period** coverage and the availability of, the premium for, and the importance of purchasing optional **extended reporting period** coverage.

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1. Such right to purchase optional **extended reporting period** coverage must be exercised by the **Named Insured** by providing written notice to the **Company** accompanied by the amount of additional premium described below within: 1) sixty (60) days of the termination of the **policy period** or 2) within thirty (30) days after the **Company** mails written notice advising of the availability and importance of **extended reporting period** coverage, whichever is greater.
2. The first sixty (60) days of the optional **extended reporting period** coverage, if it is purchased, shall run concurrently with the automatic, non-cancelable **extended reporting period**.
3. There is no right to any optional **extended reporting period** if the **Named Insured** has been insured by the **Company** for less than one (1) year and this policy has been terminated due to nonpayment of premium or fraud.
4. The additional, non-refundable premium for an optional **extended reporting period** shall be:
 - a. Seventy-five percent (75%) of the annual premium for a one-year **extended reporting period**;
 - b. One hundred fifty percent (150%) of the annual premium for a three-year **extended reporting period**;
 - c. One hundred seventy-five percent (175%) of the annual premium for a five-year **extended reporting period**; or
 - d. Two hundred percent (200%) of the annual premium for a seven-year **extended reporting period**.

C. Retirement Option

Upon retirement from the practice of accountancy, any accountant who qualifies as an **Insured** shall be entitled to an individual **extended reporting period** with an unlimited reporting period and with no additional premium if the accountant:

1. Is at least fifty-five (55) years old;
2. Was employed by, or a partner, officer, director or stockholder of the **Named Insured** during the **policy period** and had been insured by the **Company** under the Accountants Professional Liability Policy continuously for at least four (4) full years; and,
3. Notifies the **Company** of the retirement and requests an individual **extended reporting period** within sixty (60) days of the cancellation, nonrenewal or expiration of this policy.

D. Death or Permanent Disability Option

Any accountant who qualifies as an **Insured** who dies or becomes permanently disabled during the **policy period** shall be entitled to an individual **extended reporting period** with an unlimited reporting period and with no additional premium, if:

1. The accountant was employed by the **Named Insured** during the **policy period** and died or became disabled during the **policy period**; and

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2. Satisfactory written evidence of death or permanent disability is provided to the **Company**; and
3. The accountant or accountant's representative notifies the **Company** of the death or disability and requests issuance of an individual **extended reporting period** within sixty (60) days following the cancellation, nonrenewal or expiration of this policy.

E. Claims

Any **extended reporting period** is not a new policy and any **claim** submitted during such **extended reporting period** shall be governed by the terms and conditions of this policy.

F. Limits of Liability

1. The limit of liability of the **Company** for all **claims** reported during an optional **extended reporting period** purchased by the **Named Insured** pursuant to Section VI.B shall be:
 - a. At least equal to one hundred (100) percent of the policy's annual aggregate limit where the **Named Insured** has been continuously insured by the **Company** for three years or more; or
 - b. If the **Named Insured** has been continuously insured by the **Company** for less than three years, the limit liability shall be at least equal to the greater of:
 - i. The amount of coverage remaining in policy's annual aggregate limit of liability, or
 - ii. Fifty (50) percent of such policy's annual aggregate liability limit.

G. Extended Reporting Period For Certain Named Insureds

If the **Named Insured** is a corporation, partnership or other entity, any **Insured** covered under this policy may purchase a one (1), three (3), five (5), or seven (7) year **extended reporting period** if:

1. Such an entity has been placed in liquidation or bankruptcy or permanently ceases operations;
2. The entity or its designated trustee does not purchase **extended reporting period** coverage; and
3. Such **Insured** requests **extended reporting period** coverage within one hundred twenty (120) days of the termination of coverage.

The **Company** may charge the **Insured** for whom **extended reporting period** coverage is provided under this section a premium commensurate with such coverage.

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OFAC ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

U.S. ECONOMIC AND TRADE SANCTIONS LIMITATIONS CLAUSE

No insurer shall be deemed to provide cover and no insurer shall be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that insurer to any sanction, prohibition or restriction under the trade or economic sanctions, laws or regulations of the United States of America.

The United States of America trade or economic sanctions, laws or regulations shall include, but not be limited to, those sanctions administered and enforced by the U.S. Treasury Department's Office of Foreign Assets Control (OFAC).

All other terms, conditions and exclusions of this Policy remain unchanged.

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This endorsement, effective 08/01/24 12:01 am,

Forms part of policy number: CE24APLZ0EWLSIV

Issued to: Longmeadow Associates LLC

By: Navigators Insurance Company

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**RETIREMENT, DEATH OR PERMANENT DISABILITY EXTENDED REPORTING PERIOD OPTION
AMENDED FOR SOLE PROPRIETORS**

This endorsement modifies insurance provided under the following:

ACCOUNTANTS PROFESSIONAL LIABILITY POLICY

In consideration of the premium charged, it is hereby understood and agreed that Section **VI. EXTENDED REPORTING PERIODS** paragraphs **C. Retirement Option** and **D. Death or Permanent Disability Option** are deleted and replaced by the following:

C. Retirement Option for a Sole Proprietor

If the **Named Insured** is a sole proprietor who retires from the practice of accountancy during the **policy period**, such sole proprietor shall be entitled to an **extended reporting period** with an unlimited reporting period and with no additional premium if the sole proprietor:

1. Is at least fifty-five (55) years old;
2. Has been insured as a sole proprietor by the **Company** under this Accountants Professional Liability Policy continuously for at least four (4) full years;
3. Cancels or does not renew this policy due to retirement from the practice of accountancy; and
4. Notifies the **Company** of the retirement and requests an **extended reporting period** in writing within sixty (60) days of the cancellation or expiration of this policy.

D. Death or Permanent Disability Option for a Sole Proprietor

If the **Named Insured** is a sole proprietor who dies or becomes permanently disabled during the **policy period**, sole proprietor shall be entitled to an **extended reporting period** with no additional premium if the sole proprietor or their estate, heir, spouse, executor, administrator, or legal representative:

1. Notifies the **Company** of the death or permanent disability;

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2. Cancels or does not renew this policy due to the termination of the sole provider's practice of accountancy; and
3. Requests an **extended reporting period** in writing and provides satisfactory written evidence of either the date of death or proof of permanent disability within sixty (60) days of the cancellation or expiration of this policy.

This optional death or permanent disability **extended reporting period** extends the period of time during which **claims** may be reported until the executor or administrator of the estate is discharged or the period of disability ends.

All other provisions of this policy remain unchanged.

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This endorsement, effective 08/01/24 12:01 a.m.,

Forms part of policy number: CE24APLZ0EWLSIV

Issued to: Longmeadow Associates LLC

By: Navigators Insurance Company

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

TERRITORY EXCLUSION ENDORSEMENT

Notwithstanding anything to the contrary in this Policy (including any schedules or endorsements thereto), this Policy excludes all direct or indirect loss, damage, liability, cost and expense of any nature:

1. For entities domiciled, resident, located, organized, headquartered, incorporated, registered or established in the "excluded territory".
2. For individual natural persons resident in or located in the "excluded territory".
3. For claims, actions, suits, enforcement actions or other proceedings brought or maintained in the "excluded territory".
4. For Payments to persons or entities in the "excluded territory".
5. For Locations or operations in the "excluded territory".
6. For any "Quantum Computing Services", "Architecture Services", "Engineering Services", "Accounting Services", "Trust and Corporate Formation Services", and "Management Consulting Services" to a person or entity located in the Russian Federation.
7. That take place in, or arise out of, or arise in connection with, the "excluded territory".

For purposes of this endorsement, "excluded territory" means any of the following, including any territories, possessions or territorial waters thereof:

- a. The Republic of Belarus.
- b. The Russian Federation and any regions of other countries held under control by the Russian Federation.
- c. Ukraine (including any regions annexed or held under control by another foreign power).

This exclusion applies regardless of whether there is other insurance available to any insured. Where there is any conflict between the terms of this endorsement and the terms of the Policy, the terms of this

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endorsement shall apply. Any Sanctions clause or provision that forms a part of this Policy continues to apply.

For purposes of this endorsement, the following definitions apply:

“Accounting services” means services related to the measurement, processing, and evaluation of financial data about economic entities.

“Architecture Services” means any architectural services including advisory services; pre-design services; design services (including schematic design, design development, and final design); contract administration services; combined architectural design and contract administration services (including post construction services); and all other services requiring the expertise of architects; regardless of whether the services are in relation to buildings or structures that are residential, institutional, leisure, commercial, or industrial; recreational areas; transportation infrastructure; land subdivisions; urban planning services (including land use services), site selection, and servicing of land for systemic, coordinated urban development; landscape architectural services; or otherwise.

“Engineering Services” means any engineering services, including assistance, advisory, consultative, design, or recommendation services for an engineering project or concerning any engineering matters; geotechnical, groundwater, and corrosion engineering services; integrated engineering services (such as those for transportation infrastructure or other project); engineering-related scientific and technical consulting services (including geological, geophysical, geochemical, surface or subsurface surveying, and map making services); testing and analysis services of chemical, biological, and physical properties of materials or of integrated mechanical and electrical systems; and technical inspection services; regardless of whether the services are for construction of foundations and building structures (structural engineering); mechanical and electrical installations for buildings; the construction of civil engineering works; industrial processes and production; or any other engineering designs (including acoustics, vibration, traffic control systems, or prototype development for new products).

“Trust and corporate formation services” means services related to assisting persons in forming or structuring legal persons, such as trusts and corporations; acting or arranging for other persons to act as directors, secretaries, administrative trustees, trust fiduciaries, registered agents, or nominee shareholders of legal persons; providing a registered office, business address, correspondence address, or administrative address for legal persons; and providing administrative services for trusts.

“Management consulting services” means services related to strategic business advice; organizational and systems planning, evaluation, and selection; development or evaluation of marketing programs or implementation; mergers, acquisitions, and organizational structure; staff augmentation and human resources policies and practices; and brand management.

“Quantum Computing Services” means the following services in connection with quantum computing, quantum computers or electronic assemblies thereof, or cryogenic refrigeration systems used in connection with quantum computing:

Class 2-14002
Risk

NOTICE: THESE POLICY FORMS AND THE APPLICABLE RATES ARE EXEMPT FROM THE FILING REQUIREMENTS OF THE NEW YORK INSURANCE LAW AND REGULATIONS. HOWEVER, THE FORMS AND RATES MUST MEET THE MINIMUM STANDARDS OF THE NEW YORK INSURANCE LAW AND REGULATIONS.

- (1) Infrastructure, web hosting, or data processing services;
- (2) Custom computer programming services;
- (3) Computer systems integration design services;
- (4) Computer systems and data processing facilities management services;
- (5) Computing infrastructure, data processing services, web hosting services, and any related services;
- (6) Repairing computer, computer peripherals, or communication equipment;
- (7) Any other computer-related services; or
- (8) Direct or indirect exportation, re-exportation, sale, or supply.

All other terms, conditions and exclusions remain unchanged.

Class 2-14002
Risk

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This endorsement, effective 08/01/24 forms a part of Policy # CE24APLZ0EWLSIV issued to Longmeadow Associates LLC

ADDITIONAL INSURED ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

ACCOUNTANTS PROFESSIONAL LIABILITY POLICY

In consideration of the premium charged, it is agreed the person or entity designated below is insured under this policy solely for vicarious liability arising from **professional services** performed by the **Named Insured**. Nothing contained in this endorsement will serve to increase the **Company's** limit of liability:

Name of person or entity:

Copperfield Associates LLC
Longmeadow Associates LLC
ROSENBERG CHESNOV CPA's LLP

All other provisions of this policy remain unchanged.

Class 2-14002
Risk

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AGGREGATE DEDUCTIBLE ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

ACCOUNTANTS PROFESSIONAL LIABILITY POLICY

In consideration of the premium charged, it is hereby agreed item 5. in the Declarations is deleted in its entirety and replaced as follows:

5. DEDUCTIBLE (Inclusive of **claim expenses**): \$25,000 Aggregate

It is further agreed item **II. LIMITS OF LIABILITY AND DEDUCTIBLE**, paragraph **C. Deductible** is deleted in its entirety and replaced with the following:

C. Deductible

The deductible amount stated above is the Insured's maximum obligation for all **claims** first made against the **Insured** during the **policy period** or any applicable **extended reporting period**. Such deductible amount shall apply to the payment of **damages** and **claim expenses**, and shall be paid by the **Named Insured**.

Claim expenses charged against the deductible amount stated in item 5. of the Declarations may equal up to fifty (50) percent of the deductible amount if the limit of liability shown in item 4.A. in the Declarations for "Each **Claim**" is at least \$500,000.

All other provisions of this policy remain unchanged.

Class 2-14002
Risk

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CLAIM EXPENSES OUTSIDE THE LIMIT OF LIABILITY ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

ACCOUNTANTS PROFESSIONAL LIABILITY POLICY

In consideration of the premium charged, it is agreed the policy is amended as follows:

Item 4. in the Declarations is deleted and replaced as follows:

4. LIMITS OF LIABILITY:

- A. \$ 3,000,000 Limit of Liability – Each **Claim** (exclusive of **claim expenses**)
- B. \$ 3,000,000 Limit of Liability – Policy Aggregate (exclusive of **claim expenses**)

Section I. **INSURING AGREEMENTS**, paragraph A. **Coverage** is amended as follows:

- 3. **Claim expenses** are in addition to and do not reduce the limit of liability.

Section I. **INSURING AGREEMENTS**, paragraph D. **Exhaustion of Limits** is deleted and replaced as follows:

D. Exhaustion of Limits

The **Company** is not obligated to pay any **damages** or **claim expenses** or to defend or continue to defend any **claim** after the applicable limit of liability has been exhausted by the payment of **damages** as provided herein; or after the **Company** has deposited the applicable limit of liability into a court of competent jurisdiction or tendered the applicable limit of liability to the **Named Insured** or, if applicable, to the excess insurer(s) of the **Named Insured**. In such case, the **Company** shall have the right to withdraw from the further investigation, defense or settlement of such **claim** by tendering control of said investigation, defense and settlement of the **claim** to the **Insured**. The **Company** will cooperate in the transfer to the **Named Insured** of control of the defense of any **claims** which were reported to the **Company** prior to the exhaustion of such limit. The **Named Insured** must reimburse the **Company** for expenses it incurs in taking those steps the **Company** deems appropriate to avoid a default in such **claims** until such transfer has been completed.

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Risk

Section II. LIMITS OF LIABILITY AND DEDUCTIBLE, paragraph A. Limits of Liability - Each Claim and paragraph B. Limits of Liability - Policy Aggregate, are deleted in their entirety and replaced as follows:

A. Limit of Liability - Each Claim

Subject to Section II.B. below, the **Company's** limit of liability for **damages** for each **claim** first made against the **Insured** during the **policy period** shall not exceed the amount shown in item 4.A. in the Declarations for "Each **Claim**".

B. Limit of Liability - Policy Aggregate

The **Company's** limit of liability for **damages** for all **claims** first made against the **Insured** during the **policy period** shall not exceed the aggregate amount shown in item 4.B. in the Declarations as the "Policy Aggregate".

Section II. LIMITS OF LIABILITY AND DEDUCTIBLE, paragraph E. Multiple Insureds, Claims and Claimants is deleted and replaced as follows:

The limits of liability shown in item 4. in the Declarations is the maximum amount the **Company** will pay under this policy for **damages** regardless of the number of **Insureds**, **claims** made or claimants. All **related claims** made against any **Insured** shall be considered a single **claim**, first made when the earliest of the **related claims** was first made and first reported to the **Company** when the earliest of the **related claims** was reported to the **Company**; provided, however, that nothing in this Section II.F. shall alter the **Insured's** obligation to give written notice of any **claim** made against the **Insured** as soon as reasonable.

All other provisions of this policy remain unchanged.

Class 2-14002
Risk

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This endorsement, effective 08/01/24 forms a part of Policy # CE24APLZ0EWLSIV issued to Longmeadow Associates LLC

ADDITIONAL NAMED INSURED ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

ACCOUNTANTS PROFESSIONAL LIABILITY POLICY

In consideration of the premium charged, it is agreed item 1. in the Declarations, **Named Insured**, is amended to include the following:

Item 1. NAMED INSURED: Rosenberg Chesnov Advisors LLC with a Retroactive Date of 8/21/2023

All other provisions of this policy remain unchanged.

Class 2-14002
Risk

**NOTICE: THESE POLICY FORMS AND THE APPLICABLE
RATES ARE EXEMPT FROM THE FILING REQUIREMENTS OF
THE NEW YORK INSURANCE LAW AND REGULATIONS.
HOWEVER, THE FORMS AND RATES MUST MEET
THE MINIMUM STANDARDS OF THE NEW YORK INSURANCE
LAW AND REGULATIONS.**

This endorsement, effective 08/01/24 forms a part of Policy # CE24APLZ0EWLSIV issued to Longmeadow Associates LLC

NETWORK SECURITY AND PRIVACY EXCLUSION ENDORSEMENT

This endorsement modifies insurance provided under the following:

ACCOUNTANTS PROFESSIONAL LIABILITY POLICY

NOTE: This endorsement changes the policy. Please read it carefully. Words and phrases that appear in **bold** print have special meanings that are either defined in this endorsement or in the policy to which this endorsement is attached.

Section IV. **EXCLUSIONS** is amended by adding the following at the end thereof:

- M.** Based on or arising out of any **Media Content Wrongful Act, Network Security Wrongful Act** or **Privacy Wrongful Act**.
- N.** Based on or arising out of an actual or potential **Cyber Incident**.

However, Exclusions **M.** and **N.** do not apply to the supplementary payment of response expenses described in Section II. **G. 2. Reimbursement for Security Incident** of this policy.

Section III. **DEFINITIONS** is amended by adding the following at the end thereof:

- W. Computer System** means computers, websites and associated input and output devices, mobile devices, data storage devices, networking equipment, and back up facilities, including data stored on such devices.
- X. Cyber Incident** means:
 - 1. a **PII Breach Incident**; or
 - 2. any actual or potential attack against the **Insured's Computer System** which has or may
 - a. cause damage or render inoperable the **Insured's** website or network including a denial of service attack or the intentional introduction of malicious code, or

Class 2-14002
Risk

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- b. cause the release of **Personally Identifiable Information** or **Proprietary Business Information**.

Y. Insured's Computer System means a **Computer System** that is:

- 1. operated by and either owned or leased by the **Insured**; or
- 2. operated by a third party service provider to the **Insured** pursuant to a written contract with the **Insured**, including a cloud computing service provider, and
 - a. used to host computer application, data, infrastructure or co-location services to the **Insured**, or
 - b. used for processing, maintaining, hosting or storing the **Insured's** data.

Z. Media Content Wrongful Act means any actual or alleged infringement of copyright, patent, trademark, trade secret or other intellectual property rights by any **Insured** arising out of the **Insured's Media Content**.

AA. Media Content means any information including words, sounds, numbers, images, or graphics and including advertising, brochures, product literature, video, streaming content, web-casting published on any web site owned or maintained by the **Insured**. **Media Content** includes content disseminated by other means of media transmittal by the **Insured** provided that it is a duplication of content already published on any web site owned or maintained by the **Insured**.

BB. Network Security Wrongful Act means any actual or alleged act, omission, error, misstatement, misleading statement, neglect or breach of duty by any **Insured** that results in unauthorized access to the **Insured's Computer System**, including such access resulting in any actual, alleged or the suspected unauthorized misappropriation, loss, copy, transmission, distribution or release of, or the destruction or damage to information, the actual, alleged or suspected release of malicious code or a denial of service attack.

CC. PII Breach Incident means any act or omission, or **related act or omission**, which has resulted in, or might have resulted in, a release of **Personally Identifiable Information** that requires notice to persons by the **Insured** under a **PII Breach Notice Law**.

DD. PII Breach Notice Law mean any federal, state, local or foreign statute or regulation that requires notice to persons whose **Personally Identifiable Information** was or may have been accessed by an unauthorized person or entity.

EE. Personally Identifiable Information means:

- 1. information concerning an individual which is defined as private personal information under a **PII Breach Notice Law**;
- 2. information concerning an individual which is defined as private personal information under the statutes or regulations enacted to protect such information in foreign countries, for **Claims** subject to the law of such jurisdictions;
- 3. information concerning an individual which is financial information that constitutes "nonpublic personal information" as defined in the Gramm-Leach Bliley Act of 1999, as amended, and regulations issued thereunder;
- 4. medical or health care information concerning an individual, including "protected health information" as defined in the Health Insurance Portability and Accountability Act of 1996, commonly known as HIPPA, as amended, and regulations issued thereunder; or

5. any private, non-public or public information of any kind concerning an individual regardless of the nature or form of such information including but not limited to the individual's driver license or state identification number; social security number; unpublished telephone number; credit, debit or other financial account numbers in combination with associated security codes, access codes, passwords or pins.

Personally Identifiable Information does not include publicly available information that is lawfully made available to the general public from federal, state or local government records.

FF. Privacy Wrongful Act means any actual or alleged act, omission, error, misstatement, misleading statement, neglect or breach of duty by any **Insured**, or by a third party under contract with the **Insured** and for whom an **Insured** is legally liable, that results in a **Privacy Injury** including but not limited to such **Privacy Injury** arising from an unauthorized access to the **Insured's Computer System**.

GG. Privacy Injury means:

1. the actual, alleged or suspected unauthorized misappropriation, loss, copy, transmission, distribution or release of, or the destruction or damage to **Personally Identifiable Information**, or **Proprietary Business Information**, in violation of law;
2. identity theft and identity fraud;
3. the violation by an **Insured** of the **Insured's** procedures and policies intended to protect the confidentiality of **Personally Identifiable Information**; or
4. actual or alleged violation of any federal, state, foreign or local privacy statute directly resulting from any of the foregoing including but not limited to: (1) any actual or alleged failure to provide any required notices, or (2) any violation of the obligations of an **Insured** under section 5 of the Federal Trade Commission Act or the Health Insurance Portability and Accountability Act, in connection with any of the foregoing.

HH. Proprietary Business Information means any information of any customer or client of the **Insured**, including but not limited to:

1. financial, strategic or technical data;
2. business plans;
3. customer information;
4. employee information;
5. market information; or
6. trade secrets.

ALL OTHER TERMS AND CONDITIONS REMAIN UNCHANGED.

SPECIFIC ENTITY EXCLUSION ENDORSEMENT

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

ACCOUNTANTS PROFESSIONAL LIABILITY POLICY

In consideration of the premium charged, it is agreed that the following paragraph is added to the Section **IV. EXCLUSIONS**:

The **Company** will not defend or pay any **claim**:

Based on or arising out of **professional services** rendered by the following person(s) or entity(ies):

Charles D. Grossman, CPA

All other provisions of this policy remain unchanged.

Class 2-14002
Risk

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PRODUCER COMPENSATION NOTICE

You can review and obtain information on The Hartford's producer compensation practices at www.TheHartford.com or at 1-800-592-5717.

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**Navigators**
A BRAND OF THE HARTFORD



ACCOUNTANTS PROFESSIONAL LIABILITY RISK MANAGEMENT ASSISTANCE HOTLINE

Dear Valued Customer,

As an Accounting Professional Liability policyholder of Navigators, we are pleased to provide you with access* to our Accountants Professional Liability Risk Management Hotline.

Our hotline will connect you to the experienced attorneys at Wilson Elser Moskowitz Edelman & Dicker LLP (Wilson Elser), a leading professional liability law firm with numerous offices throughout the United States and a practice group focused on accountants and accounting firms in particular. Wilson Elser can provide assistance with professional risk management questions that arise in your accounting practice.

Risk Management topics could include:

- firm best practices and quality control/risk management policies and procedures,
- engagement letter wording,
- disengagement letter wording,
- laws and legal issues/trends affecting the practice of accounting,
- regulatory, licensing and ethics inquiries,
- and other matters related to professional conduct that may help you avoid or mitigate professional liability exposure.

Please contact Wilson Elser at 888-368-8785. All calls are confidential, your identity will not be reported to Navigators.

We hope you take advantage of this valuable service offered to Navigators Accountants Professional Liability customers. Thank you for choosing Navigators, a brand of the Hartford.

** Up to two (2) hours of consultation services are provided at no charge. Wilson Elser is an independent, third party law firm and not a member company, subsidiary, or affiliate of The Hartford. Wilson Elser will not answer professional liability insurance coverage questions, please consult your agent or broker regarding such matters. Please also be advised that availing yourself of the services described herein will not constitute the filing of a notice of claim under any insurance policy, nor are any such services intended to be a replacement or substitute for your own due diligence or the hiring of your own legal counsel. The Hartford does not guarantee the performance of any third party mentioned herein. The Hartford assumes no responsibility for the control, correction or legal compliance of your business*

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practices and operations. Use of the services described herein is voluntary and solely at your own discretion.

Class 2-14002
Risk

NAV-APL-RM (03 24)

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Risk Management Assistance Hotline for Accountant's Professional Liability

As a Navigators Insurance Company policyholder, you have exclusive access to our hotline for risk management services and questions at no cost to you.



The hotline can assist you with Accounting practice questions you may have relating to risk management. This could include policies and procedures, document review, engagement letter wording, document requests, and any other related professional liability matters.

Please contact the Law Firm of Wilson Elser Moskowitz Edelman & Dicker LLP at 888-368-8785.

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